

Manmohan Singh Kushwaha v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 March 2023 · WRIT - C No. 6272 of 2023 · **Disposed; theft recovery withdrawn for a fresh Supply Code order.**

HEADNOTE

A writ against a recovery certificate for electricity dues in a theft case was disposed of after the licensee stated that the recovery had been withdrawn and that a fresh order would follow a hearing. The Court left the licensee at liberty to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, without deciding liability.

FACTUAL SUMMARY

Manmohan Singh Kushwaha challenged a recovery certificate dated 8 April 2021 issued by respondent no. 2 for electricity dues in a case of theft, against U.P. Power Corporation Ltd. and four others. On 3 March 2023 counsel for the electricity department sought time to see whether the recovery would be withdrawn and fresh proceedings held to fix any amount payable. On 13 March 2023 she stated on instructions that the recovery had been withdrawn and a fresh order would follow after hearing the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a theft-dues recovery

HOLDING

On the licensee's statement that the recovery certificate dated 8 April 2021 for theft dues stood withdrawn and that a fresh order would be passed after hearing, the writ was disposed of with liberty to the licensee to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3

PRINCIPLE TAGS

fresh-supply-code-order-after-hearing The licensee having withdrawn the impugned theft-dues recovery and undertaken to hear the petitioner, the writ was disposed of with liberty to pass a fresh order strictly under the U.P. Electricity Supply Code, 2005, without a finding on liability. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS ESTABLISHED AND WHAT SUM, IF ANY, IS PAYABLE. Left to a fresh order after hearing. The Court did not examine the recovery certificate on merits. ¶ 3